Punjab National Bank

REQUEST FOR PROPOSAL
FOR
SUPPLY,INSTALLATION, CONFIGURATION, TESTING, COMMISSIONING AND MAINTENANCE
OF
CHEQUE IMAGING SCANNERS
FOR CHEQUE TRUNCATION SYSTEM

Information Technology Division
I.T Procurement Department
Head Office, 5 Sansad Marg,
New Delhi - 110 001
Tel: (011)-23311452
23710021

Fax: (011) - 23321305
23320306

Bid Details :

Request for Proposal for Supply, Installation, Configuration, Testing, Commissioning and Maintenance of Cheque imaging scanners for Cheque Truncation System.

1.	Date of commencement of Bidding Process.	06.04.2017
2.	Last date and time for receipt of queries for clarification from bidders	12.04.2017 till 1700 HRS
3.	Pre Bid Meeting	14.04.2017 at 1530 HRS
4.	Last date and time for downloading of Bidding Documents	25.04.2017 till 1600 HRS
5.	Last date and time for Hash submission and Bid preparation	25.04.2017 till 1600 HRS
6.	Last date and time for online Bid submission	26.04.2017 till 1400 HRS
7.	Last date and time for Bid submission	26.04.2017 till 1400 HRS
8.	Place of opening of Bids	Punjab National Bank, Information Technology Division, Head Office,5- Sansad Marg, New Delhi - 1
9.	Address for communication	As above Tel:(011) 23311452 /23718045 Fax:(011) 23321305
10.	Cost of RFP	Rs. 10,000/- (non refundable)) should be submitted online only in favour of Punjab National Bank before last date of bid submission in the following account: IFSC Code : PUNB0015300 Bank & Branch : Punjab National Bank, Sansad Marg, New Delhi -110 001 Account No. **0153002200175673** (16 digits) Imprest account – HO IT Division
11.	Earnest Money Deposit (EMD)	EMD amount as mentioned in clause no 14 should be submitted online before last date of bid submission or in the form of Bank Guarantee (BG) in favor of Punjab National Bank, IT Division New Delhi as per clause no. 16. BG should be valid up to six months from the date of Bid submission. IFSC Code : PUNB0015300 Bank & Branch : Punjab National Bank, Sansad Marg, New Delhi -110 001 Account No. **0153002100572949** (16 digits) Imprest account – HO IT Division In case of unsuccessful bidder, EMD will be returned after completion of the bid process (without interest).
12.	Contact to Bidders	Interested Bidders are requested to send the e-mail

		to prabhat_shukla@pnb.co.in,akjali@pnb.co.in containing following information, so that in case of any clarification same may be issued to them. Name of company, contact person, mailing address with Pin Code, Telephone No., e-mail address, Mobile No. etc.

Note:

1) Technical Bids will be opened online as well as in physical form but Commercial bid will be opened online only; Bidders may view the details through their terminal using their e-procurement [https://www.pnbindia.biz] registration login.

2) Any Bidder, who wish to participate in this tender and not registered earlier in our e-procurement site, would have to register with our e-procurement site.

3) All the technical supporting documents should be given in physical form only. However, Commercial Bid should be submitted only online in our e-procurement system.

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INSTRUCTIONS TO BIDDER

1. INTRODUCTION & PURPOSE OF THE RFP

Punjab National Bank is one of the largest Public Sector Banks with more than 6800 Branches/Offices geographically located at more than 3400 centers all across India. The Bank is fully computerized and networked in order to achieve the effective and efficient customer services and Back office operations.
Punjab National Bank invites technically complete and commercially competitive proposal from reputed vendors for Supply, Installation, Configuration, Testing, Commissioning and Maintenance of Cheque imaging scanners (100 DPM UV enabled) for three Cheque Truncation System (CTS) grids, as per details hereunder, which should be compatible with the application software being used by the Bank in respective CTS grids which shall be used by PNB Branches/Offices and PNB sponsored RRBs, subsidiaries. The bidder may submit their bid for one or all CTS grids separately.

A) CTS has been implemented by the bank in all three Grids: namely Western, Southern and Northern Grids. These three Grids cover following states:--

S. No.	Name of the Grid	Name of the State
1	Northern Grid	Delhi, Punjab, J&K, Rajasthan, UP, Bihar, Jharkhand, Chandigarh & Uttarakhand,Haryana
2	Western Grid	Maharashtra, Goa, Gujarat, MP & Chhattisgarh
3	Southern Grid	Tamilnadu, Andhra Pradesh,Telengana, Karnataka, Kerala, West Bengal, Odisha & N-E states

B) Tentative requirement of cheque imaging scanners, for all three CTS grids with name of vendor whose application the Bank is presently using, is as under:-

Sr. No	Name of Grid	Name of Application Vendor	Indicative no. of scanners to be procured
1	Northern Grid	NCR	200
2	Southern Grid	NCR	150
3	Western Grid	FORBES	200

C) This invitation of Bid is open to all Original Equipment Manufacturers (OEMs) having presence in India or their Authorized Representative in India, provided firms fulfill the eligibility criteria as mentioned in bid document (Annexure-II). In case of authorized representative, a letter of authorization to this effect from OEM must be furnished**. Joint Bid will not be accepted by the Bank. One OEM should be represented by one representative only.**

2. ELIGIBILITY CRITERIA:

Only those Bidders who fulfill the Pre-Qualification Criteria mentioned in **Annexure- II** are eligible to respond to the RFP. Offers received from the Bidders who do not fulfill any of the eligibility criteria mentioned are liable to be rejected. This invitation of Bids is open to all Original Equipment Manufacturers or authorized partners of OEM having registered offices in India.

3. SCOPE OF WORK

i. The bids are to be submitted for Supply, Installation, Configuration, Testing, Commissioning and Maintenance of **Cheque imaging scanners** for Cheque Truncation System across the country.

ii. The bids are to be submitted CTS grid wise. The Bidder may submit bid for one grid or for all the grids.

iii. Integration of the proposed UV enabled scanners with the application running in that grid will be sole responsibility of the bidder.

iv. During the contract period, bidders have to pass on the benefit of discount / reduction in prices/ Govt. duties, if any, to the Bank voluntarily. In case of failure, Bank reserves the right to terminate the rate contract with immediate effect.

v. Bidder should undertake to provide maintenance support to equipment and arrange for spare parts for a minimum period of **Five years** from the date of installation.

vi. The bidder should undertake to ensure minimum uptime of 98% for the scanning machines supplied by them. They shall have to execute service level agreement for the same.

vii. The bidder will have to conduct POC of Cheque imaging scanners for each Grid separately at their own cost at PNB HO: ITD New Delhi. The Cheque imaging scanners should be compatible with CTS Web-based application procured by the Bank from M/s NCR Corporation and Forbes Technosys for Southern / Northern and Western CTS Grids respectively. In case bidder fails to conduct POC of the Cheque imaging scanner within stipulated time i.e within 2 weeks, the bid will be rejected as non-compliant.

viii. The bidder will have to provide technical bid (online and physical) superscripted with name of CTS Grid(s) applying and **commercial bid only on-line**.

4. COST OF BIDDING

The Bidder shall bear all the costs associated with the preparation and submission of its bid and Punjab National Bank, hereinafter referred to as the Bank, will in no case be responsible or liable for these costs, regardless of the conduct or outcome of the bidding process.

5. BIDDING DOCUMENT

The Bidder is expected to examine all instructions, forms, terms and conditions and technical specifications in the Bidding Documents. Failure to furnish all information required by the Bidding Documents or submission of a bid not substantially responsive to the Bidding

Documents in every respect will be at the Bidders' risk and may result in the rejection of its bid without any further reference to the bidder. Bidder should strictly submit the bid as per RFP failing which bid will be rejected as non-responsive.

6. LANGUAGE OF BIDS

The bids prepared by the bidder and all correspondence and document relating to the bids exchanged by the bidder and PNB, shall be written in English.

7. AUTHENTICATION OF ERASURES/OVERWRITING ETC.

Any inter-lineation, erasures, or overwriting shall be valid only if the person(s) signing the bid initial(s) them.

8. AMENDMENT OF BIDDING DOCUMENTS

At any time prior to the last Date and Time for submission of bids, the Bank may, for any reason, modify the Bidding Documents through amendments at the sole discretion of the Bank. All amendments shall be uploaded on the Bank's websites (www.pnbindia.in , www.pnbindia.biz) and will be binding on all who are interested in bidding.

In order to provide prospective Bidders a reasonable time to take the amendment if any, into account in preparing their bid, the Bank may, at its discretion, extend the deadline for submission of bids.

9. CONTACTING THE BANK

Any effort by a bidder to influence the Bank in evaluation of the bid, bid comparison or contract award decision may result in the rejection of the Bidders' bid. Bank's decision will be final and without prejudice and will be binding on all parties.

10. BANK'S RIGHT TO ACCEPT OR REJECT ANY BID OR ALL BIDS

The Bank reserves the right to accept or reject any bid and annul the bidding process or even reject all bids at any time prior to award of contract, without thereby incurring any liability to the affected bidder or bidders or without any obligation to inform the affected bidder or bidders about the grounds for the Bank's action. The Bank reserves the right to accept or reject any technology proposed by the vendor.

11. MODIFICATION AND WITHDRAWAL

Bids once submitted will be treated, as final and no further correspondence will be entertained on this. No bid will be modified after the deadline for submission of bids. No bidder shall be allowed to withdraw the bid, if bidder happens to be successful bidder.

12. REVELATION OF PRICES

The prices in any form or by any reasons should not be disclosed in the technical or other parts of the bid except in the commercial bid. Failure to do so will make the bid liable to be rejected.

13. CLARIFICATIONS OF BIDS

To assist in the examination, evaluation and comparison of bids the Bank may, at its discretion, ask the bidder for clarification. The response should be in writing and no change in the price or substance of the bid shall be sought, offered or permitted.

14. BID EARNEST MONEY

The EMD should be in the form of online mode or BG for the period of 6 months favoring PUNJAB NATIONAL BANK, IT DIVISION and filling all the details in the format provided in the RFP for the same. In case of unsuccessful bidder, EMD will be returned on completion of tender process and no interest will be payable on EMD amount. The EMD will be returned to the successful bidder upon submission of Performance Bank Guarantee. EMD to be submitted as below:-

If the bid is submitted for :--

A) **Northern and Southern Grids - Rs.4,00,000/- (Rs. Four Lakhs only)**
B) **Western Grid only- Rs.1,00,000/- (Rs. One Lakh only)**
C) **Northern, Southern and Western Grids - Rs.5,00,000/- (Rs. Five Lakhs only)**

Details for online payment:
IFSC Code: PUNB0015300
Bank & Branch: Punjab National Bank, Sansad Marg, New Delhi -110001
Account No. 0153002100572949 (16 digits) Imprest account – HO IT Division

{Proof of the transaction (printout) to be submitted along with the bid documents}.

15. DEADLINE FOR SUBMISSION OF BIDS

Bids must be submitted not later than the specified date and time mentioned in the Bid Document. If specified date of submission of bids being declared a holiday for the Bank, the bids will be received up to the specified time in the next working day. The Bank may, at its discretion, extend this deadline for submission of bids by amending the bid documents, in which case all rights and obligations of the Bank and bidders, previously subject to the deadline, will thereafter be subject to the deadline extended. All the correspondence/bid should be addressed to Bank at the following address:

The Asst. General Manager
Punjab National Bank
IT Procurement Department
Information Technology Division
Head Office, 5 Sansad Marg,
New Delhi - 110 001

16. LATE BIDS

Any bid received by the Bank after the deadline for submission of bid will be rejected and/or returned unopened to the Bidder.

17. OPENING OF BIDS

All the bids will be opened at the date, time and locations mentioned in RFP (as per tender schedule). The technical bids will be opened in the presence of representatives of the bidders who choose to attend.

18. PERIOD OF VALIDITY

Bids shall remain valid for a period of 6 months from the date of bid opening prescribed by the Bank. A bid valid for shorter period shall be rejected by the Bank as non-responsive.

19. RELIABILITY

Since the equipment shall be installed at critical sites, the equipment so offered should be robust and reliable.

20. BID CURRENCY

The Prices in the bid document shall be expressed in Indian Rupees (INR**)** only.

21. SUBMISSION OF BIDS

The bidders shall duly complete the formats of Technical Bid and Commercial Bid and the same will be submitted online through our e-Procurement System using their Digital Signature at website https://www.pnbindia.biz. The bid Submitted by the bidder using Digital Certificate is binding the bidder to the contract.

Bidders are also required to submit technical supporting documents in physical form duly signed by authorized signatory in sealed cover on or before date and time of bid submission. In case of any variation between physical bid and on-line bid , the contents in the on-line bid shall be valid and acceptable.

22. BIDDING PROCESS (TWO STAGES)

For the purpose of the present job, a two-stage bidding process will be followed. The response to the present tender will be submitted in two parts:

- Technical bid (Part-l)
- Commercial bid (Part-ll)

The response to the present tender will be submitted in two parts, Technical Bid and Commercial Bid. The bidders will have to submit the technical bid in physical as well as online form through Banks e-procurement system super scribed name of application. The supporting documents will have to be submitted in physical form. **Commercial bids should be submitted online through bank's e-procurement system only.**

i. TECHNICAL BID (Part I)

The bidder will have to submit the Technical Bid in sealed envelopes, duly super scribing "**RFP for Supply, Installation, Configuration, Testing, Commissioning and Maintenance of various types of Cheque imaging scanners for Cheque Truncation System for following Grids:**

1. **Northern and Southern Grids**
2. **Western Grid**
3. **Northern, Southern and Western Grids**

TECHNICAL BID will **NOT contain any pricing or commercial information at all**. Technical bid documents with any commercial information will be rejected.

In the first stage, only TECHNICAL BIDs will be opened and evaluation of Technical bids and POC of Cheque imaging scanners will be done by bidders with the bank's CTS Applications as mentioned in scope of work. In case bidder fails to conduct POC of the Cheque imaging scanner, the bids of that bidder will be rejected as non-responsive. Only those bidders satisfying the technical requirements and successful completion of POC as determined by the Bank and accepting the terms and conditions of this document shall be short-listed for next stage of evaluation.

The bid shall contain no interlineations, erasures or over writing except as necessary to correct errors made by the Bidder, in which case such corrections shall be duly confirmed under signature/initials of the person(s) signing the bid.

ii. **COMMERCIAL BID (Part II)**

Under the second stage, the COMMERCIAL BID of only those bidders, whose technical bids are responsive, will be opened. **Commercial bids should be submitted in online form only through bank's e-procurement system.**

23. BID OPENING AND EVALUATION

In the event of the specified date of bid opening being declared a holiday for bank, the bids shall be opened at the specified time and place on next working day. In the first stage, only TECHNICAL BIDs will be opened and evaluation of Technical bids and POC of Cheque imaging scanners will be done by bidders with the bank's CTS Applications as mentioned in scope of work. In case bidder fails to conduct POC of the Cheque imaging scanner, the bids of that bidder will be rejected as non-responsive. Only those bidders satisfying the technical requirements and successful completion of POC as determined by the Bank and accepting the terms and conditions of this document shall be short-listed for next stage of evaluation. In the second stage, the COMMERCIAL BID of only those bidders, whose technical bids are responsive, will be opened. The Bank reserves the right to accept or reject any technology proposed by the bidder without assigning any reason thereof. Decision of the Bank in this regard shall be final and binding on all the bidders.

24. PRELIMINARY EXAMINATION

The Bank will examine the commercial bids to determine whether they are complete; whether any computational errors have been made; whether required information has been provided as underlined in the bid document; whether the documents have been properly signed, and whether bids are generally in order. Bids from agents without proper authorization from the manufacturer as per the authorization form, shall be treated as non-responsive and will be out-rightly rejected.
Arithmetic errors will be rectified on the following basis.

a. If there is a discrepancy between unit price and the total price that is obtained by multiplying the unit price and quantity, the unit price shall prevail and total price shall be corrected.
b. If there is discrepancy between words and figures, the amount in the words will prevail.

25. PROCEDURE FOR FINALIZING L1 VENDOR FOR Cheque imaging scanners for Cheque Truncation System:

The L-1 bidder will be decided on the least price of each categories of Scanners mentioned in commercial offer Annexure VIII.

26. REVERSE AUCTION

Bank may hold the reverse auction separate for Western **Grid** , Northern/ Southern Grids /All the three Grids(100 DPM UV enabled CTS scanners) ,Cartridge Cleaner and cartridge to decide L-1 bidder in case two or more bidders qualify for the commercial stage in Western **Grid** and Northern/ Southern Grids separately. The procedure for the same is available on our e- procurement website (https://pnbindia.biz).

Price Variation Factor

"If a bidder quoting higher prices, higher by more than 40% as compared to the average quoted prices (of all technically qualified bidders) for all items in aggregate, the same bidder shall not be called for reverse auction process

****Bank has the option to negotiate if there is only one eligible bidder after commercial evaluation.**

27. GOVERNING LAWS AND DISPUTES

All disputes or differences whatsoever arising between the parties out of or in relation to the construction, meaning and operation or effect of these Tender Documents or breach thereof shall be settled amicably. If however the parties are not able to solve them amicably, the same shall be settled by arbitration in accordance with the applicable Indian Laws, and the award made in pursuance thereof shall be binding on the parties. The Arbitrator/Arbitrators shall give a reasoned award. Any appeal will be subject to the exclusive jurisdiction of the courts at Delhi.

During the arbitration proceedings the Vendor shall continue to work under the Contract unless otherwise directed in writing by the bank or unless the matter is such that the work cannot possibly be continued until the decision of the arbitrator or the umpire, as the case may be, is obtained. The venue of the arbitration shall be Delhi.

SIGNING OF CONTRACT

i. The successful bidder(s) for Western **Grid** / Northern & Southern Grids shall be required to enter into a rate contract with PNB, within 15 days of the award of the tender or within such extended period as may be specified by the bank, HO: Information Technology Division, Punjab National Bank, HO: 5, Sansad Marg, New Delhi, on the basis of the Tender Document of the successful bidder, the letter of acceptance and such other terms and conditions as may be determined by the Bank to be necessary for the due performance of the work in accordance with the Bid and the acceptance thereof.

ii. Terms and conditions shall be contained in a Memorandum of Understanding to be signed at the time of execution of the Form of Contract. The rate contract will be valid for ONE YEAR, if not revised earlier or unless terminated by the bank before due date.

iii. Bank may extend the rate contract for a further period of 1 year or any other period subject to satisfactory performance of vendor and on mutually agreed terms and conditions.

28. USE OF CONTRACT DOCUMENTS AND INFORMATION

The supplier shall not, without the Bank's prior written consent, make use of any document or information provided by Supplier in Bid document or otherwise except for purposes of performing contract.

29. PATENTS RIGHTS

The supplier shall indemnify the Bank against all third party claims of infringement of patent, trademark or industrial design rights arising from use of the Goods, or any part thereof in India.

1. The supplier shall, at their own expense, defend and indemnify the Bank against all third party claims or infringement of intellectual Property Rights, including Patent, trademark, copyright, trade secret or industrial design rights arising from use of the products or any part thereof in India or abroad.

2. The supplier shall expeditiously extinguish any such claims and shall have full rights to defend it there from. If the Bank is required to pay compensation to a third party resulting from such infringement, the supplier shall be fully responsible for, including all expenses and court and legal fees.

3. The Bank will give notice to the Supplier of any such claim without delay, provide reasonable assistance to the Supplier in disposing of the claim, and shall at no time admit to any liability for or express any intent to settle the claim.

30. ASSIGNMENT

The supplier shall not assign, in whole or in part, its obligations to perform under the contract, except with the Bank's prior written consent.

31. PREDISPATCH INSPECTION AND QUALITY CONTROL TEST

The Bank reserves the right to carry out pre-shipment inspection by a team of Bank officials of any of the existing live installation of the supplier referred to in the Technical Bid or demand a demonstration of the solution proposed on a representative model in the bidder's office at the cost of bidder. The bidder shall make all necessary arrangement for this purpose. Bank will also conduct the random acceptance testing of Cheque imaging scanners to ascertain their configuration and quality.

32. LIMITATION OF LIABILITY

Vendor's aggregate liability under the contract shall be limited to a maximum of the contract value. This limit shall not apply to third party claims for

a. IP Infringement indemnity
b. Bodily injury (including Death) and damage to real property and tangible property caused by vendor/s' gross negligence. For the purpose for the section, contract value at any given point of time, means the aggregate value of the purchase orders placed by bank on the vendor that gave rise to claim, under this tender. Vendor shall not be liable for any indirect, consequential, incidental or special damages under the agreement/ purchase order.

33. FORCE MAJEURE

Notwithstanding the above provisions, the successful bidder shall not be liable for penalty or termination for default if and to the extent that it's delay in performance or other failure to perform its obligations under the contract is the result of an event of force majeure. For purposes of this clause, "force majeure" means an event beyond the control of the bidder and not involving the bidders' fault or negligence and not foreseeable. Such events may include, but are not restricted to, war or revolution and epidemics. If a force majeure situation arises, the bidder shall promptly notify the bank in writing of such condition and the cause thereof. Unless otherwise directed by the bank in writing, the bidder shall continue to perform its obligation under the contract as far as is reasonably practical, and shall seek all reasonable alternative means of performance not prevented by the force majeure event.

34. INDEMNITY

Vendor shall have to indemnify the Bank against any loss/expenditure incurred or any disputes/claims from anybody for having used/using patented designs in their hardware. Any patented design used in Cheque imaging scanners for Cheque Truncation System shall be under manufacturer's license agreements and a copy of such agreement authorizing the vendor to manufacture the patented designs shall be given to the Bank.

The vendor shall furnish Indemnity bond for providing adequate maintenance/service support for their Cheque imaging scanners for Cheque Truncation System during both warranty and post warranty periods (of minimum 3 years) failing which bank shall have the right to proceed against the vendor for damage legally or otherwise.

35. TERMINATION OF CONTRACT:

The quality of services given by the vendor will be reviewed every 3 months and if the services are not found satisfactory, the bank reserves the right to terminate the contract by giving 30 days notice to the vendor. The decision of the bank regarding quality of services shall be final and binding on the vendor.

Annexure-I

COMMERCIAL TERMS AND CONDITIONS FOR SUPPLY INSTALATION AND MAINTENACE OF Cheque imaging scanners for Cheque Truncation System ARE AS UNDER:-

1. **ACCEPTANCE OF ORDER:** The vendor shall acknowledge orders in ITOT system from the date of receipt of the order from the respective Circle Offices. The orders downloaded from the system would be construed as a purchase order issued by the competent authority to place the order.

   Bank has a right to cancel the order if the same is not accepted within a period of 7 days from the date of order, otherwise it will be considered as accepted.

2. **DELIVERY & INSTALLATION TIME : Six** weeks from the date of order.

3. **PAYMENT TERMS :**
   - 100% on installation.

In case installation of equipment is delayed due to Bank and the delay is more than 30 days of delivery then payment will be made as under:-

- 80% After 30 days of delivery of equipment
- 20% on installation.

*** Payments will be made by respective Zonal Offices for supply of Cheque imaging scanners for Cheque Truncation System to branches under their jurisdiction after verifying installation notes and deducting late delivery charges, if any.**

4. **Taxes:** The prices are inclusive of all Taxes, Statuary levies etc. except Sales Tax/VAT/Octroi/Entry Tax/ Service Tax/GST which will be paid on actual basis. The Excise/Custom duty / Service Tax will however have to be mentioned separately in the invoice and the bank may set off the applicable Excise/Customs duty against the Duty Free Scrip for which bank is eligible under chapter 3 of Foreign Trade Policy.

5. **Insurance:** All expenses towards insurance of the equipment, till the Cheque imaging scanners for Cheque Truncation System is installed at the bank, shall be borne by the vendor. The vendor shall, however, arrange for a maximum insurance of 30 days after delivery, in case installation is delayed due Bank.

6. **Performance Bank Guarantee:** The successful bidder has to submit the Performance Bank Guarantee valid up to the 72 months from the date of accepting the offer letter. In case vendor fails to perform the contract, Bank shall invoke the Bank Performance Guarantee to recover penalty/damages. PBG to be submitted as mentioned below, if the L-1 bidder is for :

A) Northern and Southern Grids - Rs. 20,00,000/- (Rs. Twenty Lakhs only)
B) Western Grid only- Rs.5,00,000/- (Rs. Five Lakhs only)
C) Northern, Southern and Western Grids - Rs.25,00,000/- (Rs. Twenty Five Lakhs only)

7. **Warranty Period:** The Cheque imaging scanners for Cheque Truncation System supplied shall be under a comprehensive warranty of 24 months from the date of installation in the bank's office.

8. **PENALTY FOR LATE DELIVERY**

a) Penalty at the rate of 2% per week of order amount of undelivered / non installed of the CTS scanner, maximum 10% will be charged for late delivery. For this purpose the period will commence from the date of order.
b) The equipments are to be delivered within stipulated time line and installed within two weeks from the date of delivery of the CTS Scanner.
c) For this purpose delivery means complete delivery of System of the ordered equipments i.e. Cheque imaging scanners for Cheque Truncation System, including power cables, racks/stand at the site.
The Bank reserves the right to cancel the order in case complete delivery is not affected within the stipulated time.

9. **Road permit:** Obtaining of the Road permits, form32, other statutory forms etc. will be the sole responsibility of successful bidder. However, Bank will sign the necessary forms as per the requirement.

10. Vendor shall ensure that Cheque imaging scanners for Cheque Truncation System units supplied to the Bank are exactly as per specifications indicated in order /vendor's quotations and they shall be fully responsible for these in case of any dispute arising at any stage.

11. Requirements of installation such as power distribution points from mains power supply, suitable well ventilated space for Cheque imaging scanners for Cheque Truncation System shall be assessed by vendor and these requirements have to be intimated to the concerned offices within 2 weeks of date of order. Vendor shall guide/assist the offices in finalizing such requirements as considered necessary for installation of Cheque imaging scanners for Cheque Truncation System.

12. Vendor shall arrange for training/familiarization Program for I.T. centre/site persons responsible for use of Cheque imaging scanners for Cheque Truncation System. Vendor shall supply to each of the Circle offices/site two copies of Manual of Instructions for operating/maintaining their equipment and a copy of manual to Information Technology Division within 7 days.
13. Vendor would include in above-mentioned manual single in line and block schematic diagram of the Cheque imaging scanners for Cheque Truncation System, detailed electrical circuit diagram/wiring details along with the detailed list of components etc within 7 days from the offer letter.

14. **AMC:** Comprehensive AMC rate shall be fixed to 8% of the cost of Cheque imaging scanners for Cheque Truncation System only and valid for three years after warranty. AMC payment will be done half yearly advance basis.

15. After the expiry of warranty period, the bank may, at its discretion, enter into all inclusive annual maintenance contracts with the vendor for maintenance service and repairs of Cheque imaging scanners for Cheque Truncation System.

16. PENALTY FOR DELAYED MAINTENANCE SERVICE UNDER AMC AND WARRANTY

a. During Warranty and AMC period, vendor shall attend the maintenance work within 24 hours including travel time from the receipt of complaint.
b. During warranty period penalty for delay will be computed @ 2% per day of order amount subject to maximum 10% per incident and penalty amount shall be recovered from any pending payments.
c. During AMC period Penalty for delay will be computed @ 5% of the AMC for each day of default subject to a maximum of 50% of AMC amount of the hardware for the year and penalty amount shall be recovered from any pending payments.
d. In case the downtime is to be more than 3 days, the vendor has to make immediate arrangement for standby system.
e. During warranty/AMC Period amount of penalty will be recovered from vendor. On demand from Bank, vendor undertakes to pay the penalty amount. Bank reserve the right to invoke the Bank Guarantee for recovering the penalty amount.
f. During AMC Period amount of penalty as per above clauses will be recovered/adjusted while making payment at the next renewal of AMC payment/charges in respect of all Cheque imaging scanners for Cheque Truncation System covered under the maintenance contract. In case of non-renewal of AMC, the penalty or damages as the case may be shall be recovered from the vendor and vendor undertakes to pay the amount immediately after demand from Bank.

17. PREVENTIVE MAINTENANCE CHECKS

During the warranty period as well as during the annual maintenance contract the vendor in addition to attending to calls for repairs/maintenance shall conduct the preventive maintenance checks on quarterly basis.

18. SPARE PARTS

Vendors have to maintain the availability of spare parts of Cheque imaging scanners for Cheque Truncation System for a minimum period of five years from the date of acceptance of system. If the vendor is not able to maintain the Cheque imaging scanners for Cheque Truncation System for five years, vendor shall have to replace the Cheque imaging scanners for Cheque Truncation System with new one for the remaining period at his own cost.

19. Service to Cheque imaging scanners for Cheque Truncation System under AMC

Vendor shall confirm that they will service the Cheque imaging scanners for Cheque Truncation System and provide spares for a minimum period of three years post warranty. AMC shall be executed on the bank's approved format. Replacement of all parts of Cheque imaging scanners for Cheque Truncation System shall be covered under AMC.

20. Pre Integrity Pact

All participating bidders have to submit Integrity Pact to the Bank as per Annexure-XIV.

21. The bank reserves its right to cancel the whole/or part of the order without assigning any reasons thereon and no damages/claims/payments shall be payable by the bank in lieu thereof. In case of any dispute at any stage, the same shall be settled at a court of Law situated within the Union Territory of Delhi.

Signature of Authorised Signatory
Name of Signatory:
Designation:

Seal of Company

Annexure-II

PRE QUALIFICATION CRITERIA

Pre-Qualification Criteria	Compliance (Yes/No)	Document Required
I. The bidder should be a registered company in India under Company Act 1956 and amended company act 2014.		Certificate of Incorporation
II. The bidder should be either Original Equipment Manufacturer (OEM) for the Cheque imaging scanners for which bidder is submitting its bid or their authorized representative in India but both cannot bid simultaneously for the same item/product this tender. In case of authorized representative, a letter of authorization to this effect from OEM must be furnished.		Self-declaration/ a letter of authorization to this effect from OEM must be furnished. (As per Annexure XI)
III. The bidder should be engaged in Cheque imaging scanners business in India at least for 2 years. Certificate issued by client in the last two year must be submitted.		Purchase Order issued to company in the last two year.
IV. The bidder should have supplied minimum 100 Cheque Imaging scanners in at least 2 public sector/private sector Banks during the last financial year i.e. 2015-16 and current financial year up to the bid submission date. The certificate to this effect from the respective Bank should be furnished along with Technical bid.		Certificate issued by client in the last two year must be submitted.
V. The bidder should have minimum annual turnover of Rs. 5 crores each during the last two financial year 2014-15 and 2015-16. This must be individual company turnover and not of any group of companies. Audited balance sheet for said year to be submitted.		Audited Balance Sheet & Profit and loss Statement
VI. The bidder should have positive net worth in the last financial year (2015-16). Certified copy of audited Balance sheet must be submitted along with Technical bid.		Audited Balance Sheet & Profit and loss Statement

VII.	The bidder should have at least 1 support office in each specified locations to provide service to all PNB Circle Office locations as per the Annexure - IX. List of support offices to be enclosed with the bid documents. If not undertaking to be provided that service support centers will be established within a month after signing the SLA with the Bank.		List of service centers as per Annexure IX with complete addresses and contact numbers. Undertaking from the authorized signatory for service support centers will be established within a month after signing the SLA with the Bank. (As per Annexure XI)
/III.	The bidder should be able to provide efficient and effective support at all locations where the equipment be supplied & installed under this bid, so as to meet 24X7 hrs service support. **Undertaking signed by authorized signatory to be provided.**		A commitment to this effect should be furnished, duly signed by the authorized Signatory. (As per Annexure XI)
IX.	Bidder has to provide All India toll free/ contact number/email ID for lodging the complaints and submit the escalation matrix chart.		Toll Free/ Contact number, email ID and Escalation matrix
X.	Bidder has to give unconditional undertaking for providing service support / component parts / assembly/ software used in Cheque imaging scanners for Cheque Truncation System for **minimum Five years from the date of installation** of Cheque imaging scanners for Cheque Truncation System.		Unconditional undertaking (As per Annexure XI)
XI.	Bidder should not have been blacklisted by any PSU/Pvt. Bank / IBA/RBI during the last five years. In case, Bidder Company was blacklisted previously, bidder should provide declaration that same is revoked on or before the time of bid submission. A written undertaking to this effect should be furnished.		Self under taking ((As per Annexure XI)

Date: _____
Place: _____

Signature of Authorised Signatory
Name of Signatory:
Designation:
Seal of Company

NOTE:

All certificates/ undertaking must be signed by the Authorized signatory duly authorized by the company by passing the resolution in his/her favors may signed the document. In case of partnership firm documents must be signed by the one of the authorized partner as per partnership deed (In case of Partnership firms they are required to submit the duly certified copy of partnership deed along with bids documents)

Supporting Document for PRE QUALIFICATION FOR BIDDER.

1. All the interested bidders are requested not to upload the supporting document in e-Procurement system instead they may submit the same in physical form before bid submission time.
2. Please enclose documentary proof for all the above criteria. In absence of these, the bids will not be considered for further evaluation. No further correspondence will be entertained in this case. Further, those bidders who have not satisfactorily completed any earlier contract with the Bank shall not be eligible for participating in this process.

Signature of Authorised Signatory
Name of Signatory:
Designation:
Seal of Company

Annexure-III

BIDDERS INFORMATION

Bidder Details	**Bidder's Information**
Name of bidder	
Constitution	
Name and Address of authorized person/Company Secretary (Please attach the copy of company resolution/Partnership Deed)	
Contact Person(s) Phone number, Mobile no.	
Telephone, Fax, Email	
Total Years of Experience in Cheque imaging scanners for Cheque Truncation System.	

Please give brief financial particulars of your firm for the last year– (In lacs)
Please submit the certified copies of audited Balance sheet for financial year

Last two financial years ending 31.03.2015 and 31.03.2016	**FY. 2014-15**	**F.Y. 2015-16**
TOTAL TURNOVER		
NET WORTH		

Signature of Authorised Signatory
Name of Signatory:
Designation:
Seal of Company

Annexure-IV

COMPLIANCE STATEMENT

DECLARATION

Compliance	**Description**	**Compliance (Yes/No)**	**Remarks/ Deviations**
Terms and Conditions	We hereby undertake and agree to abide by all the terms and conditions including all annexure, corrigendum(s) etc. stipulated by the Bank in this RFP. (Any deviation may result in disqualification of bids).		
Technical Specification	We certify that the systems/services offered by us for tender confirms to the specifications stipulated by you with the following deviations		

(If left blank it will be construed that there is no deviation from the specifications given above)

Please note that any deviations mentioned elsewhere in the bid will not be considered and evaluated by the Bank. Bank reserve the right to reject the bid, if bid not submitted in proper format as per RFP**.**

Date: _____
Place: _____

Signature of Authorised Signatory
Name of Signatory:
Designation:
Seal of Company

Annexure-V

TECHNICAL REQUIREMENT FOR CHEQUE IMAGING SCANNERS FOR NORTHERN/SOUTHERN/WESTERN GRID

Sr No	Functionality	Description	Compliance (Yes/No)
1.	Make/Model		
2.	Performance	Minimum **100 DPM**	
3.	Size	Table Top	
4.	Automatic Document Feeder	- Single Document automatic insertion - Holding minimum 100 documents - Double feed detection	
5.	Pockets	A single exit pocket capable of holding minimum 100 documents.	
6.	Document Specifications	Height: Min: 54 mm (2.12"") - Max: 108 mm (4.3"") Length: Min: 80 mm (3.14"") - Max: 235 mm (9.25"")	
7.	Interface & Drivers	USB2.0 port/ Backward compatible with USB 1.1 **Windows 2007** & above	
8.	Magnetic Reader	E13B / CMC7/Auto detect MICR reader.	
9.	Image Capture	Scanning: Contact Image sensors (CIS) technology (front and rear) Image type : Gray Scale, Black & white Image format: JFIF, TIFF Compression : JPEG, CCITT G4 Image resolution: B/W TIFF be at 200 DPI & TIFF 6.0 Standard, Gray Scale JPEG be at 100 DPI Advanced dynamic thresholding. Ultra Violet Imaging: Detect the presence of UV ink on the cheques and the driver should be integrated with PNB's CTS application for the detection of UV logo and photocopy cheques.	
10.	Ink jet printer	High resolution rear ink jet printer Printing capability: Single line, Alphanumeric characters, all MS Windows fonts Printed information captured by the image. Automatic Cartridge presence detection and empty cartridge detection. Further scanner shall be able to have double line endorsement.	
11.	Diagnostic	On board Diagnostics: Tests the functionality of the scanner Power-on Self Testing: Automatic self testing and photocells calibration when powering the unit	
12.	Other additional Components	Bidder should provide certified IQA (Internal quality Assurance) / IQU(Internal quality	

		Usage) engine along with scanner as per NPCI / RBI specifications.	
13.	Other requirements	1. Bidder should ensure that the scanner is compatible and should support UV functionality with the CTS Application being used by PNB at different CTS Grids. 2.The scanner must be able to detect photocopy of the cheque. 3.The scanner must generate all image views along with UV image in a single pass 4.The Offered scanners should be compatible with & conform to the Cheque Truncation Systems requirement of RBI. 5. The Bidder should provide API document of the scanner without any additional cost or Royalty fee. 6. The bidder should share sample source code in java and C# to demonstrate common functionalities of CTS scanner. 7.Bank will be free to use API in any of its internal application interfacing with the scanner.	

a. The bidder should provide a compliance statement for all the above specification of technical requirements against each item.
b. The bidder will have to conduct POC at their cost of Cheque imaging scanners for Cheque Truncation System with the bank's existing CTS application as mentioned in scope of work at the stage of technical evaluation. In case bidder fails to conduct POC of the Cheque imaging scanner, the bids of that bidder will be rejected as non-compliant.
c. The time and place of conducting POC shall be conveying to each bidder on their email-IDs.
d. All relevant product information such as user manuals, technical specifications sheet etc should be submitted along with the offer. Failure to submit this information may result in disqualification of the bid.

Signature of Authorised Signatory
Name of Signatory:
Designation:
Seal of Company

Annexure- VI

Service Support Details

Location: Telephone	Location: Fax No	Status of office working days and hours	Number of Maintenance Engineers	Number of Maintenance Staff

Add as many rows as needed

Signature of Authorised Signatory
Name of Signatory:
Designation:
Seal of Company

Annexure- VII

Performa for Performance Statement

Order Placed by (Full Address of Bank)	Description and Qty of ordered Equipment	Value Of Order	Date of Completion	Performance Equipment (Attach Certificate from customers)

Add as many rows as needed

Signature of Authorised Signatory
Name of Signatory:
Designation:
Seal of Company

Annexure- VIII

COMMERCIAL OFFER

A) FOR CTS WESTERN GRID

S. No	Categories of Scanners	Multiplication Factor(Units) (A)	Unit Rate (Rs) (B)	Total Cost (Rs) (AXB)
1	CTS Scanner Min 100 DPM (UV enabled) with cartridge	200		
2	Cartridge (Single Unit)	10		
3	Cartridge Cleaner Card (1 Pack of 25 Units)	10		
	Total			

B) FOR CTS NORTHERN & SOUTHERN GRID(S)

S. No	Categories of Scanners	Multiplication Factor(Units) (A)	Unit Rate (Rs) (B)	Total Cost (Rs) (AXB)
1	CTS Scanner Min 100 DPM (UV enabled) with cartridge	350		
2	Cartridge (Single Unit)	10		
3	Cartridge Cleaner Card (1 Pack of 25 Units)	10		
	Total			

a) The bidder has to submit the commercial bid on line only in the above format.
b) Bidder shall quote all the figures in numbers followed by in words enclosed in brackets in all commercial bids.
c) The AMC rate is fixed at 8% of the amount of CTS Scanner, which therefore is not to be quoted.
d) Separate L1 vendor will be decided for Northern / Southern Grids and Western Grid.
e) Bank may hold reverse auction in case 2 or more bidders are technically qualified in each grid i.e. Northern/ Southern Grids and Western Grid for CTS Scanner , cartridge and Cartridge Cleaner.

Note: Quantity mentioned above is indicative only and may vary depending upon the actual requirement at the time of placing order

Annexure-IX

List of Service support centers for PNB Circle Offices where approved vendor(s) must have their service support office/ residential engineer.

S.No.	Circle Office	Service support Centre	S. No.	Circle Office	Service support Centre
1	Bangalore	Bangalore	**37**	Bathinda	Kapurthala
2	Mumbai City	Mumbai	**38**	Kapurthala	
3	Mumbai Suburb				
4	Kolkata	Kolkata	**39**	Hoshiarpur	
5	Burdwan		**40**	Alwar	Jaipur
6	Midnapur		**41**	Bharatpur	
7	Guwahati	Guwahati	**42**	Jaipur	
			43	Udaipur	
8	Chennai	Chennai	**44**	Jodhpur	Jodhpur
9	Trichy		**45**	Sriganganagar	
10	Dehradun	Dehradun	**46**	Faizabad	Varanasi
11	Haridwar		**47**	Gorakhpur	
12	Moradabad	Bareilly	**48**	Varanasi	
			49	Allahabad	Lucknow
13	Bareilly		**50**	Kanpur	
14	Kashipur		**51**	Lucknow	
15	Dharamsala	Dharamsala	**52**	Jhansi	
16	Hamirpur		**53**	Ahmedabad	Ahmedabad
17	Mandi		**54**	Surat	
18	Jammu	Amritsar	**55**	Bhopal	Bhopal
19	Amritsar		**56**	Indore	
			57	Gwalior	
20	Delhi North	Delhi	**58**	Raipur	Raipur
			59	Bilaspur	
21	Delhi South		**60**	Jabalpur	
22	Central Delhi		**61**	Bhubaneswar	Bhubaneswar
23	Noida		**62**	Sambalpur	
24	Bulandshahr	Agra	**63**	Hyderabad	Hyderabad
25	Agra		**64**	Vijayawada	
			65	Ernakulum	Ernakulum
26	Meerut	Meerut	**66**	Kozhikode	
27	Muzaffarnagar		**67**	Arrah	Patna
28	Hissar	Hissar	**68**	Patna	
29	Karnal		**69**	Bihar Sharif	

30	Kurukshetra		**70**	Darbhanga	
31	Rohtak		**71**	Muzaffarpur	
32	Chandigarh	Chandigarh	**72**	Gaya	Ranchi
33	Shimla		**73**	Ranchi	
			74	Bokaro	
34	Patiala		**75**	Pune	Pune
35	Ludhiana	Ludhiana	**76**	Nagpur	
36	Jalandhar				

Annexure- X

Performa for the Bank Guarantee for Earnest Money Deposit
(To be stamped in accordance with stamp act)
Ref: Bank Guarantee # Date
Punjab National Bank
Information Technology Division
5, Sansad Marg
New Delhi 110001

Dear Sir,
In accordance with your bid reference no. _____
Dated _____M/s_____ having its registered office at _____herein after Called 'bidder') wish to participate in the said bid for supply, integration, operationalisation & maintenance of Cheque imaging scanners for Cheque Truncation System at Punjab National Bank, Information Technology Division, 5 Sansad Marg New Delhi 110001 having its Head Office at 7, Bhikhaiji Cama Place New Delhi 110066.

An irrevocable Financial Bank Guarantee (issued by a nationalized / scheduled commercial Bank) against Earnest Money Deposit amounting to (**) Rupees (in words_____) valid up to (*) is required to be submitted by the bidder, as a condition for participation in the said bid, which amount is liable to be forfeited on happening of any contingencies mentioned in the bid document.

M/s_____ having its registered office at _____ has undertaken in pursuance of their offer to Punjab National bank (hereinafter called as the beneficiary) dated _____ has expressed its intention to participate in the said bid and in terms thereof has approached us and requested us_____ (Name of Bank)_____ (Address of Bank) to issue an irrevocable financial Bank Guarantee against Earnest Money Deposit (EMD) amounting to (**)Rupees (in words_____) valid up to (*).

We, the _____ (Name of Bank)_____ (Address of Bank) having our Head office at _____ therefore Guarantee and undertake to pay immediately on first written demand by Punjab National Bank, the amount (**)Rupees (in words_____) without any reservation, protest, demur and recourse in case the bidder fails to Comply with any condition of the bid or any violation against the terms of the bid, Without the beneficiary needing to prove or demonstrate reasons for its such demand. Any Such demand made by said beneficiary shall be conclusive and binding on us irrespective of any dispute or difference raised by the bidder.

This guarantee shall be irrevocable and shall remain valid up to (*). If any further extension of this Guarantee is required, the same shall be extended to such required period on receiving instructions in writing, from Punjab National Bank, on whose behalf guarantee is issued.

"Not withstanding anything contained herein above
Our liability under this bank guarantee shall not exceed (**)Rupees (in words_____).

This bank guarantee shall be valid up to (*). We are liable to pay the guaranteed amount or any part thereof under this bank guarantee only if you serve upon us a written claim or demand, on or before (*) before 14.30 hours (Indian Standard Time) where after it ceases to be in effect in all respects whether or not the original bank guarantee is returned to us."

In witness whereof the Bank, through its authorized officer has set its hand stamped on this _____ Day of _____2017 at _____

Name of signatory
Designation
Bank Common Seal

(*) – The period of validity should be six months from the date of submission
(**)- EMD money as mentioned in EMD clause

Annexure- XI

The Asst. General Manager
I.T. Procurement Department
Punjab National Bank, IT Division,
Head Office 5 Sansad Marg,
New Delhi-110001

Sir,

Sub: Undertaking of Authenticity for supply, installation, configuration, testing, commissioning and Maintenance of Cheque imaging scanners for Cheque Truncation System.

With reference to the Cheque imaging scanner for cheque truncation system being quoted by you vide our tender cited above.

1. We hereby undertake that our company/firm is Original Equipment Manufacturer (OEM) / authorized distributor for the Cheque imaging scanners for which we have submitted bid.

2. We herby undertake that our company/firm will establish service support at all centres (As per Annexure IX) within a month of signing SLA with the Bank.

3. We herby undertake that our company/firm will provide efficient and effective support at all locations where the equipment is supplied & installed under this bid, as per terms of the contract.
4. We herby undertake that our company/firm will provide service support / component parts / assembly/ software used in Cheque imaging scanners for Cheque Truncation System for minimum **Five years** from the date of installation of Cheque imaging scanners for Cheque Truncation System.

5. We herby undertake that our company/firm have not been blacklisted by any PS/Pvt. sector Bank / IBA/RBI in the last five years.

Date: _____Place: _____

Yours faithfully,
Signature of Authorized Signatory
Name of Signatory:
Designation:
Seal of Company

Annexure XII

The Asst. General Manager
I.T. Procurement Department
Punjab National Bank, IT Division,
Head Office 5 Sansad Marg,
New Delhi-110001

Sir,

Sub: Undertaking of Authenticity for supply, installation, configuration, testing, commissioning and Maintenance of Cheque imaging scanners for Cheque Truncation System.

With reference to the Cheque imaging scanner for cheque truncation system being quoted by you vide our tender cited above.

We hereby undertake that all the components / parts / assembly / software used in the Cheque imaging scanner for cheque truncation system shall be original new components / parts / assembly / software only, from respective OEMs of the products and that no refurbished / duplicate / second hand components / parts / assembly / software are being used or shall be used.

In case of default and we are unable to comply with above at the time of delivery or during installation, for the IT Hardware including Cheque imaging scanners for Cheque Truncation System, we agree to take back the supplied items without demur, if already supplied and return the money if any paid to us by you in this regard. We (system OEM name) also take full responsibility of both Parts & Service SLA as per the content even if there is any defect by our authorized Service Centre / Reseller / SI etc.

Date: _____
Place: _____

Yours faithfully,

Signature of Authorized Signatory
Name of Signatory:
Designation:
Seal of Company

Annexure XIII

The Asst. General Manager
I.T. Procurement Department
Punjab National Bank, IT Division,
Head Office 5 Sansad Marg,
New Delhi-110001

Sir,

Ref: Our bid for supply, installation, configuration, testing, commissioning and Maintenance of Cheque imaging scanners for Cheque Truncation System

We submit our Bid Document herewith.
We understand that

- You are not bound to accept the lowest or any bid received by you, and you may reject all or any bid.
- If our Bid for the above job is accepted, we undertake to enter into and execute at our cost, when called upon by the Bank to do so, a contract in the prescribed form. Unless and until a formal contract is prepared and executed, this bid together with your written acceptance thereof shall constitute a binding contract between us.
- If our bid is accepted, we are to be jointly and severally responsible for the due performance of the contract.
- You may accept or entrust the entire work to one vendor or divide the work to more than one vendor without assigning any reason or giving any explanation whatsoever.
- Vendor means the bidder who is decided and declared so after examination of commercial bids.
- The names of successful bidder/s to whom the contract is finally awarded after the completion of second stage (Commercial Bid), shall be displayed on the Notice Board of the Bank at Punjab National Bank, I.T. Division, HO, 5 Sansad Marg, New Delhi-110001.

Date: _____
Place: _____

Yours faithfully,

Signature of Authorized Signatory
Name of Signatory:
Designation:
Seal of Company

Annexure-XIV

INTEGRITY AGREEMENT

This Integrity Agreement is made at ..... on this .....day of ..... 2017.

BETWEEN

Punjab National Bank is a Bank constituted under The Banking Companies (Acquisition & Transfer of Under-takings) Act 1970, having its Head Office at 7, Bhikhaiji Cama Place, New Delhi 110 607 and inter-alia a Branch Office/ Circle Office at _____ (Hereinafter referred as the Principal/Owner', which expression shall unless repugnant to the meaning or context hereof include its successors and assigns)

AND

……..... (Name and Address of the Individual/firm/Company) Through..... .... Details of duly authorized signatory) (Hereinafter referred to as the "Bidder/Contractor" and which expression shall unless repugnant to the meaning or context here of include its successors and permitted assigns)

Preamble

WHEREAS the Principal / Owner has floated the Tender for (……..Name of Work……..) (hereinafter referred to as "Tender/Bid") and intends to award, under laid down organizational procedure, contract for …… …… ……hereinafter referred to as the "Contract".

AND WHEREAS the Principal/Owner values full compliance with all relevant laws of the land, rules, regulations, economic use of resources and of fairness/transparency in its relation with its Bidder(s) and Contractor(s). AND WHEREAS to meet the purpose aforesaid both the parties have agreed to enter into this Integrity Agreement (hereinafter referred to as "Integrity Pact" or "Pact"), the terms and conditions of which shall also be read as integral part and parcel of the Tender/Bid documents and Contract between the parties.

NOW, THEREFORE, in consideration of mutual covenants contained in this Pact, the parties hereby agree as follows and this Pact witnesses as under:

Article 1: Commitment of the Principal/Owner

1) The Principal/Owner commits itself to take all measures necessary to prevent corruption and to observe the following principles:

(a) No employee of the Principal/Owner, personally or through any of his/her family members, will in connection with the Tender, or the execution of the Contract, demand, take a promise for or accept, for self or third person, any material or immaterial benefit which the person is not legally entitled to.

(b) The Principal/Owner will, during the Tender process, treat all Bidder(s) with equity and reason. The Principal/Owner will, in particular, before and during the Tender process, provide to

all Bidder(s) the same information and will not provide to any Bidder(s) confidential / additional information through which the Bidder(s) could obtain an advantage in relation to the Tender process or the Contract execution.

(c) The Principal/Owner shall Endeavour to exclude from the Tender process any person, whose conduct in the past has been of biased nature.

2) If any information comes to the notice of the Principal/owner on the conduct of any of its employees which is a criminal offence under the Indian Penal code (IPC)/Prevention of Corruption Act, 1988 (PC Act) or is in violation of the principles herein mentioned or if there be a substantive suspicion in this regard, the Principal/Owner will inform the Chief Vigilance Officer and in addition can also initiate disciplinary actions as per its internal laid down policies and procedures.

Article 2: Commitment of the Bidder(s)/Contractor(s)

1) It is required that each Bidder/Contractor (including their respective officers, employees and agents) adhere to the highest ethical standards, and forthwith report the Principal/Owner about all suspected fraudulent act or corruption or Coercion or Collusion of any person connected with the tender process which it has knowledge or becomes aware any time, during the tendering process and throughout the negotiation or award of a contract.

2) The Bidder/Contractor commits himself/itself to take all measures necessary to prevent corruption. He/it commits himself/itself to observe the following principles during his/its participation in the Tender process and during execution of the Contract:

a) The Bidder/Contractor shall not, directly or through any other person or firm, offer, promise or give to any of the Principal/Owner's employees involved in the Tender process or execution of the Contract or to any third person any material or other benefit which he/she is not legally entitled to, in order to obtain in exchange any advantage of any kind whatsoever during the Tender process or during the execution of the Contract.

b) The Bidder/Contractor shall not enter with other Bidder(s) into any undisclosed agreement or understanding, whether formal or informal. This applies in particular to prices, specifications, certifications, subsidiary contracts, submission or non-submission of bids or any other actions to restrict competitiveness or to cartelize in the bidding process.

c) The Bidder/Contractor will not commit any offence under the relevant IPC/PC Act. Further the Bidder/Contract will not use improperly, (for the purpose of competition or personal gain), or pass on to others, any information or documents provided by the Principal/Owner as part of the business relationship, regarding plans, technical proposals and business details, including information contained or transmitted Electronically.

4. The Bidder/Contractor of foreign origin shall disclose the names and addresses of agents/ representatives in India, if any. Similarly Bidder/Contractor of Indian Nationality shall disclose names and addresses of foreign agents/representatives, if any. Either the Indian agent on behalf of the foreign principal or the foreign principal directly could bid in a tender but not both. Further, in cases where an agent participate in a tender on behalf of one manufacturer, he shall not be allowed to quote on behalf of another manufacturer along with the first manufacturer in a subsequent/parallel tender for the same item.

5. The Bidder/Contractor will, when presenting his/its bid, disclose any and all payments he/it has made, is committed to or intends to make to agents, brokers or any other intermediaries in connection with the award of the Contract.

4.3. The Bidder/Contractor will not instigate third persons to commit offences outlined above or be an accessory to such offences.

4.4. The Bidder/Contractor will not, directly or through any other person or firm indulge in fraudulent practice means a willful misrepresentation or omission of facts or submission of fake/forged documents in order to induce public official to act in reliance thereof, with the purpose of obtaining unjust advantage by or causing damage to justified interest of others and/or to influence the procurement process to the detriment to the interests of Principal/Owner.

4.5. The Bidder/Contractor will not, directly or through any other person or firm use Coercive Practices against principal/owner and/or other bidder(s)/contractor(s). Coercie practices mean the act of obtaining something, compelling an action or influencing a decision through intimidation, threat or the use of force directly or indirectly, where potential or actual injury may befall upon a person, his/ her reputation or property to influence their participation in the tendering process.

Article 3: Consequences of Breach

Without prejudice to any rights that may be available to the Principal/Owner under law or the Contract or its established policies and laid down procedures, the Principal/Owner shall have the following rights in case of breach of this Integrity Pact by the Bidder(s)/Contractor(s) and the Bidder/ Contractor accepts and undertakes to respect and uphold the Principal/Owner's absolute right:

1) If the Bidder/Contractor, either before award or during execution of Contract has committed a transgression through a violation of Article 2 above or in any other form, such as to put his reliability or credibility in question, the Principal/Owner at its discretion, is entitled to disqualify the Bidder/Contractor from the Tender process or terminate/determine the Contract, if already executed or exclude the Bidder/Contractor from future contract award processes after giving 14 days notice to the contractor. The imposition and duration of the exclusion will be determined by the severity of transgression and determined by the Principal/Owner. Such exclusion may be forever or for a limited period as decided by the Principal/Owner.

2) Forfeiture of EMD/Performance Guarantee/Security Deposit: If the Principal/Owner has disqualified the Bidder(s) from the Tender process prior to the award of the Contract or terminated/determined the Contract or has accrued the right to terminate/determine the Contract according to Article 3(1), the Principal/Owner apart from exercising any legal rights that may have accrued to the Principal/Owner, may in its considered opinion forfeit the entire amount of Earnest Money Deposit, Performance Guarantee and Security Deposit of the Bidder/Contractor.

3) Criminal Liability: If any act/omission or conduct of a Bidder or contractor conduct of a Bidder or Contractor, or of an employee or a representative or an associate of a Bidder or Contractor which constitutes corruption within the meaning of IPC/PC Act brought to the notice of the Principal/Owner, or if the Principal/ Owner has substantive suspicion in this regard, the Principal/Owner shall be at liberty to inform the same to law enforcing agencies for further investigation.

Article 4: Previous Transgression

(i) The Bidder declares that no previous transgressions occurred in the last 5 years with any other Company in any country confirming to the anticorruption approach or with Central Government or State Government or any other Central/State Public Sector Enterprises in India that could justify his exclusion from the Tender process.

(ii) If the Bidder makes incorrect statement on this subject, he can be disqualified from the Tender process or the contract, if already awarded, can be terminated for such reason. Principal/owner will be entitled to exclude the contractor from future tender/contract award processes for a period not exceeding three years.

(iii) Without prejudice to any other legal rights or remedies available to the principal under the relevant clauses of the tender document.

Article 5: Equal Treatment of all Bidders/Contractors/Subcontractors

1) The Bidder(s)/Contractor(s) undertake(s) to demand from all subcontractors a commitment in conformity with this Integrity Pact. The Bidder/Contractor shall be responsible for any violation(s) of the principles laid down in this agreement/Pact by any of its Subcontractors/ sub-vendors.

2) The Principal/Owner will enter into Pacts on identical terms as this one with all Bidders and Contractors.

3) The Principal/Owner will disqualify Bidders, who do not submit, the duly signed
Pact between the Principal/Owner and the bidder, along with the Tender or violate its provisions at any stage of the Tender process, from the Tender process.

Article 6- Duration of the Pact

This Pact begins when both the parties have legally signed it. It expires for the Contractor/ Vendor 12 months after the completion of work under the contract or till the continuation of defect liability period, till the Contract has been awarded. If any claim is made/lodged during the time, the same shall be binding and continue to be valid despite the lapse of this Pacts as specified above, unless it is discharged/ determined by the Competent Authority, Punjab National Bank.

Article 7-Independent External Monitor (IEM)

1. The Principal/Owner has appointed competent and credible Independent External Monitor(s) (IEM) for this Pact in consultation with the Central Vigilance Commission. The task of the Monitor is to review independently and objectively, whether and to what extent the parties comply with the obligations under this Pact.

2. The IEM is not subject to instructions by the representatives of the parties and performs his functions neutrally and independently. He reports to MD& CEO, Punjab National Bank.

3. The Bidder/Contractor accepts that the IEM has the right to access, without restriction, to all Project documentation of the Principal/Owner including that provided by the Contractor. The Contractor will also grant the IEM, upon his request and demonstration of a valid interest, unrestricted and unconditional access to his or any of his Sub-Contractor's project documentation. The IEM is under contractual obligation to treat the information and documents of the Bidder(s)/Contractor(s)/Subcontractor(s) with confidentiality.

4. In case of tenders having estimated value exceeding Rs 60 lakhs, the Principal/Owner will provide to the IEM sufficient information about all the meetings among the parties related to the Project and shall keep the IEM apprised of all the developments in the Tender Process.

5. As soon as the IEM notices, or believes to notice, a violation of this Pact, he will so inform the Management of the Principal/Owner and request the Management to discontinue or take corrective action, or to take other relevant action. The IEM can in this regard submit non-binding recommendations. However, beyond this, the IEM has no right to demand from the parties that they act in a specific manner, and/or refrain from action or tolerate action.

6) The IEM shall submit a written report to the MD & CEO, of the Principal/Owner within 6 to 8 weeks from the date of reference or intimation to him by the Principal/Owner and, should the occasion arise, submit proposals for correcting problematic situations.

(vii) The word "IEM" would include both singular and plural.

(viii) IEMs will not use or pass on any information or document provided to it regarding plans, technical proposals and business details for the purpose of competition or personal gains etc.

Article 8- Other Provisions

This Pact is subject to Indian Law, place of performance and jurisdiction is place where office of the Principal/Owner, who has floated the Tender, is located.

2. Changes and supplements need to be made in writing.

3. If the Contractor is a partnership or a consortium, this Pact must be signed by all the partners or consortium members. In case of a Company, the Pact must be signed by a representative duly authorized by board resolution.

4. Should one or several provisions of this Pact turn out to be invalid; the remainder of this Pact remains valid. In this case, the parties will strive to come to an agreement to their original intensions.

5. It is agreed term and condition that any dispute or difference arising between the parties with regard to the terms of this Integrity Agreement / Pact, any action taken by the Owner/Principal in accordance with this Integrity Agreement/ Pact or interpretation thereof shall not be subject to arbitration.

Article 9- LEGAL AND PRIOR RIGHTS

All rights and remedies of the parties hereto shall be in addition to all the other legal rights and remedies belonging to such parties under the Contract and/or law and the same shall be deemed to be cumulative and not alternative to such legal rights and remedies aforesaid. For the sake of brevity, both the Parties agree that this Integrity Pact will have precedence over the Tender/Contact documents with regard any of the provisions covered under this Integrity Pact. IN WITNESS WHEREOF the parties have signed and executed this Integrity Pact at the place and date first above mentioned in the presence of following witnesses:

..... (For and on behalf of Principal/Owner)

..... (For and on behalf of Bidder/Contractor)

WITNESSES:

1. ..... (Signature, name and address)

2. ..... (Signature, name and address)

Place:
Dated:

Annexure-XV

Check List- Technical Bid

Sl. No.	Documents	Submitted in Bid
1)	Terms And Conditions (Annexure-I)	
2)	Pre Qualification Criteria for Bidders (Annexure-II)	
3)	Bidder's Information (Annexure-III)	
4)	Compliance Statement (Annexure-IV)	
5)	Technical Specifications (Annexure-V)	
6)	Service Support Detail (Annexure-VI)	
7)	Performance Statement (Annexure-VII)	
8)	List of Service support centers for PNB Circle Offices where approved vendor(s) must have their service support office/ residential engineer. (Annexure IX)	
9)	Check List (Annexure-XV)	
10)	Bank Guarantee format for EMD (Annexure-X)	
11)	Undertaking of Authenticity for supply, installation, configuration, testing, commissioning and Maintenance of Cheque imaging scanners for Cheque Truncation System. (Annexure-XI)	
12)	Declaration(Annexure-XII)	
13)	Declaration(Annexure-XIII)	
14)	Pre-Contract Integrity Pact. (Annexure-XIV)	
15)	Any other document indicating the feature of the product.	
16)	True copy of valid ISO certificate should be submitted.	
17)	Copy of last year audited balance sheet duly attested by the Company Secretary/authorized signatory.	
18)	Power of attorney in case of authorized contact person.	
19)	Bidder has to provide All India toll free/contact number for lodging the complaints and submit the escalation matrix chart.	
20)	Commitment certificate for service support duly signed by the Company Secretary/ authorized signatory.	
21)	All pages of bid documents must be signed by authorized person and all pages of the bid document should be numbered in serial order i.e.1, 2, 3…	
22)	Unconditional undertaking for acceptance of base price for reverse auction.	

Commercial bid (Only Online)

Sl. No.	Documents	Submitted (Yes/No)
1.	Commercial bid.	

Signature of Authorized Signatory
Name of Signatory:
Designation:
Seal of Company